

TOWNSHIP OF WASHINGTON, WARREN COUNTY

Regular Meeting
December 15, 2020

The regular meeting of the Township Committee was held on this date at the Washington Township Municipal Building, 211 Route 31 North, Washington, N.J. The meeting was called to order at 7:30 pm by Mayor Robert Klingel.

SUNSHINE LAW COMPLIANCE – Mayor Klingel noted that this meeting was being held in compliance with the Open Public Meetings Law of 1975 in as much as a notice had been published in the Star-Gazette and the Express-Times, posted at the Municipal Building, and a copy is on file in the Clerk's office. This agenda is subject to change by order of the Washington Township Committee before and/or during the scheduled meeting.

ROLL CALL

Fiore, present; Kovacs, present; Rossi, present; Willan, present; Klingel, present

STAFF PRESENT

Ann Kilduff, Township Clerk; Katrina Campbell, Township Attorney; Peter deBoer, Township Administrator; Committeeman-elect Michael J. Kovacs; Chief Thomas Cicerelle; Andrew Hart, Superintendent of Public Works; Joseph Rossi, Construction Official; Lt. Kaufmann, WTPD; Sgt. Jones, WTPD; Daniel Slack, DPW

SALUTE TO THE FLAG

APPROVAL OF MINUTES

A motion was made by Willan, seconded by Rossi, to approve the minutes of the regular meeting of November 16, 2020.

ROLL CALL: Willan, yes; Rossi, yes; Fiore, yes; Kovacs, yes; Klingel, yes

A motion was made by Fiore, seconded by Rossi, to approve the Executive Session minutes of the regular meeting of November 16, 2020.

ROLL CALL: Fiore, yes; Rossi, yes; Kovacs, yes; Willan, yes; Klingel, yes

A motion was made by Rossi, seconded by Willan, to approve Resolution 2020-188.

ROLL CALL: Rossi, yes; Willan, yes; Fiore, yes; Kovacs, yes; Klingel, yes

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY**

RESOLUTION #2020-188

**RESOLUTION TO AUTHORIZE AND APPROVE
SALARIES AND WAGES FOR CERTAIN EMPLOYEES**

WHEREAS, the current annual Salary Ordinance establishes the salaries/wages and compensation for Police Department Personnel of the Township of Washington, County of Warren.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Washington, County of Warren that the following named employee be compensated on an hourly basis effective December 16, 2020 unless otherwise noted, in the amount as designated below:

<u>Name</u>	<u>Position</u>	<u>Salary</u>
Marquise Carter	School Resource Officer / Class III	\$28.97 per hour

ORDINANCES

A motion was made by Willan, seconded by Fiore, to open to the public Ordinance 20-08, An Ordinance Fixing the Salaries of the Officers and Employees of the Township of Washington, County of Warren, State of New Jersey – 2nd Reading, Public Hearing, and Adoption.

ROLL CALL: Willan, yes; Fiore, yes; Kovacs, yes; Rossi, yes; Klingel, yes

Seeing no one to address the Committee, a motion was made by Fiore, seconded by Rossi, to close the public portion. **ROLL CALL:** Fiore, yes; Rossi, yes; Kovacs, yes; Willan, yes; Klingel, yes

A motion was made by Willan, seconded by Fiore, to adopt Ordinance 20-08 on second reading.

ROLL CALL: Willan, yes; Fiore, yes; Kovacs, yes; Rossi, yes; Klingel, yes

**ORDINANCE 2020-08
TOWNSHIP OF WASHINGTON
WARREN COUNTY
2021 SALARY ORDINANCE
ORDINANCE FIXING THE SALARIES OF THE OFFICERS AND EMPLOYEES OF THE
TOWNSHIP OF WASHINGTON, COUNTY OF WARREN, STATE OF NEW JERSEY**

BE IT ORDAINED by the Township Committee of the Township of Washington, County of Warren, State of New Jersey, that the following salaries and rates of compensation shall be paid to the officers and employees of the Township of Washington for the calendar year 2021.

**Section 1
Governing Body and Township Administrator**

Mayor - In addition to Committee	600.00 -1,000.00
Township Committee Members	2,700.00 - 5,000.00
Township Administrator	10,000.00 - 135,000.00

**Section 2
Statutory Municipal Positions**

Township Clerk	50,000.00 - 79,000.00
Tax Collector	25,000.00 – 70,000.00
Tax Assessor/ <i>Part Time</i>	10,000.00 - 43,000.00
Chief Financial Officer	40,000.00 – 105,000.00/40.00 - 60.00 per hour

**Section 3
Permanent Full-Time Positions (Administrative)**

Deputy Township Clerk	30,000.00 - 55,000.00
Deputy Treasurer	35,000.00 – 65,000.00
Land Use Board Secretary	5,000.00 – 45,000.00
Township Engineer / Planner	10,000 - 130,000.00

Section 4
Permanent Part-Time Positions

Zoning Officer	5,000.00 - 20,000.00
Deputy Tax Assessor / Clerk	as per SSA with Washington Borough
Animal Control Officer	as per SSA with Washington Borough
Farmland Maintenance Manager	as per Agreement

Section 5
Required Stipend Positions

Emergency Management Coordinator	4,000.00 - 15,000.00
Deputy Emergency Management Coordinator	1,500.00 - 4,000.00
Certified Recycling Professional	as per Administrator's Contract
Recycling Coordinator	0.00 – 5,000.00
COAH Coordinator/Administrative Agent	0.00 - 3,500.00
Clean Communities Coordinator	800.00 - 3,000.00
911 Coordinator	1.00 per year

Section 6
Stipend Positions

Escrow Management Coordinator	0.00 – 4,000.00
Website Coordinator	1,500.00 – 4,000.00
Qualified Purchasing Agent (QPA)	0 - 3,500.00
Recreation Coordinator	0 - 3,000.00

Field Scheduler	0 – 3,000.00
PILOT Fee Administrator	0 – 10,000.00

Section 7
As-Needed Positions

Meeting Attendance - Acting Clerk	75.00 per meeting
Deputy Tax Assessor/Clerk	\$10,000 - \$23,000 / 15.00 - 30.00 per hour
Tax Title Lien Officer	12.00 - 25.00 per hour
Tax Search Official	10.00 per search
Assessment Search Official	10.00 per search
Acting Chief Financial Officer	\$40,000.00 – \$70,000.00/40.00-60.00 per hour
Deputy Chief Financial Officer	0-\$3,000 / 30.00 - 60.00 per hour
Township Planner	85.00-130.00 per hour
Deputy Zoning Officer	2,000.00 - 10,000.00/20.00 – 30.00 per hour
Fire Prevention Official	20.00 - 40.00 per hour
Litter Patrol	25.00 - 50.00 per patrol
Emergency Management Secretary	9.00 - 18.00 per hour
Rabies Clinic	30.00 - 100.00
Administrative Assistant	12.00 – 22.00 per hour
Passive Area Coordinator	0 - 8,000.00
Summer Recreation Employees	250.00 – 3,000.00
Custodian	\$42,000.00 – 70,000.00 / 15.00 - 35.00 per hour

Section 8A
Department of Public Works Supervisory

Superintendent of Public Works	75,000.00 - 110,000.00
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Assistant Superintendent of Public Works	55,000.00 – 95,000.00/0.00 – 60.00 per hour
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Section 8B
Department of Public Works – Collective Bargaining Unit

Laborer	15.00 - 40.00 per hour
Assistant Foreman	1.00 - 3.00 per hour
*Probation/Entry Level	14.00 - 20.00 per hour
<i>*if required</i>	

Section 8C
Department of Public Works – Non-Collective Bargaining Unit

Temporary DPW Personnel	10.00 - 20.00 per hour
Seasonal/Temporary DPW Personnel	10.00 - 20.00 per hour
Recycling Attendant	10.00 - 21.00 per hour

Section 9A
Police Department

Police Chief	65,000.00 - 160,000.00
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Section 9B
Police Department – Collective Bargaining Unit

Lieutenant	105,000.00 - 128,000.00
Sergeant	100,000.00 - 124,000.00
Step 6 Patrolman	95,000.00 – 120,000.00
*Step 5 Patrolman	85,000.00 - 115,000.00
*Step 4 Patrolman	80,000.00 - 102,000.00
*Step 3 Patrolman	70,000.00 - 89,000.00
*Step 2 Patrolman	60,000.00 - 76,000.00

*Step 1 Patrolman 50,000.00 - 70,000.00

*Recruit 40,000.00 - 50,000.00

**if required*

Section 9C

Police Department – as per Collective Bargaining Unit Stipends

Detective (Stipend) 1,200.00 - 1,500.00

Drug Prevention Education Officer (Stipend) 1,200.00 - 1,500.00

K-9 Officer (Stipend) 1,200.00 - 1,500.00

EMT (Stipend) 1,000.00 - 1,500.00

Corporal (Stipend) 1,000.00 - 3,000.00

Associate Degree (Stipend) 500.00 per year

Bachelor's Degree (Stipend) 750.00 per year

Master's Degree (Stipend) 1,000.00 per year

Section 9D

Police Department – Non-Collective Bargaining Unit

Part Time Patrolman 32,000.00 - 65,000.00

Parking Enforcement Officer 10.00 – 31.00 per hour

School Resource Officer/Class II 10.00 – 31.00 per hour

School Resource Officer/Class III 10.00 – 31.00 per hour

Section 9E

Police Department – Civilian Non-Collective Bargaining Unit

Police Secretary 25,000.00 - 80,000.00

*Part Time Police Secretary 5,000.00 - 20,000.00/10.00 – 25.00 per hour

**As needed*

Section 10

Municipal Court

Interlocal Service Agreement Shared Court	as per SSA
Municipal Public Defender	100.00 - 1,000.00 per session
*Municipal Court Officers	25.00 – 45.00 per hour
*As needed	

Section 11
Crossing Guards

Crossing Guard	10.00 - 31.00 per hour
Crossing Guard (Substitute)	10.00 - 31.00 per hour

Section 12
Uniform Code and Construction Department

Construction Code Official	5,000.00 / 10,000.00 / 20.00 - 45.00 per hour
Building Sub Code Official	20.00 - 45.00 per hour
Electrical Sub Code Official	20.00 - 45.00 per hour
Plumbing Sub Code Official	20.00 - 45.00 per hour
Fire Sub Code Official	20.00 - 45.00 per hour
Technical Assistant	15.00 - 22.00 per hour
Construction Official	5,000.00 – 10,000.00
Construction Code Official/Building Sub Code Official	30.00 - 45.00 per hour
Construction Code Official/Plumbing Sub Code Official	30.00 - 45.00 per hour
Construction Code Official/Electrical Sub Code Official	30.00 - 45.00 per hour
Construction Code Official/Fire Sub Code Official	30.00 - 45.00 per hour
Construction Code Official/Fire Sub Code Official/Building Sub Code Official	30.00 - 45.00 per hour

*Construction Code Official/Building Sub Code Official/
Fire Protection Sub Code Official/Plumbing Sub Code Official/
Mechanical Inspector/Fire Inspector/Fire Prevention Certification 30.00 - 45.00 per hour

*Substitute Technical Assistant 15.00 – 22.00 per hour

*Substitute Inspector 30.00 – 45.00 per hour

**As needed*

Severability: The various parts, sections and clauses of this Ordinance are hereby declared to be severable. If any part, sentence, paragraph, section of clause is adjudged unconstitutional or invalid by a court of competent jurisdiction, the remainder of this Ordinance shall not be affected thereby.

Repealer: Any Ordinance or parts thereof in conflict with the provisions of this Ordinance are hereby repealed as to their inconsistencies only.

Effective Date: This Ordinance shall take effect upon final passage and publication as provided by law.

RESOLUTIONS

A motion was made by Willan, seconded by Fiore, to approve Resolutions 20-189 through 20-216.

ROLL CALL: Willan, yes; Fiore, yes; Kovacs, yes; Rossi, yes; Klingel, yes

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION # 2020-189
RESOLUTION OF THE TOWNSHIP COMMITTEE
OF THE TOWNSHIP OF WASHINGTON, COUNTY OF WARREN
AUTHORIZING AN EMPLOYMENT AGREEMENT BETWEEN
PETER H. DEBOER, JR. TO SERVE AS TOWNSHIP ADMINISTRATOR AND
THE TOWNSHIP COMMITTEE OF THE TOWNSHIP OF WASHINGTON**

WHEREAS, it is the desire of the Township to (1) secure and retain the services of Peter H. deBoer, Jr. and to provide inducement for him to remain in such employment; (2) to make possible full work productivity by assuring that Peter H. deBoer Jr.'s morale and peace of mind with respect to financial compensation and associated benefits; and (3) to provide an orderly and responsible operation of the Township of Washington over which he has supervisory control; and

WHEREAS, the said Employment Agreement provides for Peter H. deBoer, Jr. to serve as the Township Administrator beginning January 1, 2021; and

WHEREAS, Peter H. deBoer, Jr. desires to accept employment as Township Administrator for the Township of Washington.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Washington, County of Warren that it does hereby authorize an Employee Agreement between Peter H. deBoer, Jr. and the Township of Washington, in accordance with said agreement annexed hereto.

BE IT FURTHER RESOLVED that the Township Committee does hereby authorize the Mayor, the Municipal Clerk, and the Township Administrator to execute any and all documents necessary to authorize an Employee Agreement between Peter H. deBoer, Jr. to serve as Township Administrator and the Township of Washington, a municipal corporation in the County of Warren, State of New Jersey with offices at 211 Route 31 North; Washington, NJ 07882.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-190
RESOLUTION OF THE TOWNSHIP COMMITTEE
OF THE TOWNSHIP OF WASHINGTON, COUNTY OF WARREN
AUTHORIZING AN EMPLOYMENT AGREEMENT BETWEEN
THOMAS J. CICERELLE TO SERVE AS CHIEF OF POLICE AND
THE TOWNSHIP COMMITTEE OF THE TOWNSHIP OF WASHINGTON**

WHEREAS, it is the desire of the Township to (1) secure and retain the services of Thomas J. Cicerelle and to provide inducement for him to remain in such employment; (2) to make possible full work productivity by assuring that Thomas J. Cicerelle's morale and peace of mind with respect to financial compensation and associated benefits; and (3) to provide an orderly and responsible operation of the Police Department over which he has supervisory control; and

WHEREAS, the said Employment Agreement provides for Thomas J. Cicerelle to serve as the Chief of Police beginning January 1, 2021; and

WHEREAS; Thomas J. Cicerelle desires to accept employment as Chief of Police for the Township of Washington.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Washington, County of Warren that it does hereby authorize an Employee Agreement between Thomas J. Cicerelle and the Township of Washington, in accordance with said agreement annexed hereto.

BE IT FURTHER RESOLVED that the Township Committee does hereby authorize the Mayor, the Municipal Clerk, and the Township Administrator to execute any and all documents necessary to authorize an Employee Agreement between Thomas J. Cicerelle to serve as Chief of Police and the Township of Washington, a municipal corporation in the County of Warren, State of New Jersey with offices at 211 Route 31 North; Washington, NJ 07882.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-191**

**RESOLUTION AUTHORIZING A COLLECTIVE BARGAINING AGREEMENT BETWEEN THE TOWNSHIP OF
WASHINGTON, COUNTY OF WARREN AND THE WARREN COUNTY POLICEMEN'S BENEVOLENT ASSOCIATION
LOCAL 280
EFFECTIVE JANUARY 1, 2021 THROUGH DECEMBER 31, 2025**

WHEREAS, the Township of Washington, County of Warren, State of New Jersey ("Township") and the Warren Township Policemen's Benevolent Association Local 280 ("PBA") are parties to a Collective Bargaining Agreement ("Contract") covering the period of January 1, 2016 and December 31, 2020; and

WHEREAS, the Township and the PBA have been engaged in good faith collective negotiations for the purpose of reaching agreement on terms and conditions of employment for a successor Contract; and

WHEREAS, the Township and PBA have reached agreement on new terms and conditions subject to ratification by the membership of PBA and approval by the Township's Governing Body; and

WHEREAS, the negotiation committees for the Township and PBA unanimously agree to recommend the attached Agreement for ratification and approval.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Washington, County of Warren that it does hereby authorize a Collective Bargaining Agreement between the Township of Washington, County of Warren and the Warren County Policemen's Benevolent Association Local 280 in accordance with said Agreement annexed hereto.

BE IT FURTHER RESOLVED that the Township Committee does hereby authorize the Mayor and Municipal Clerk to execute any and all documents necessary to authorize a Collective Bargaining Agreement between the Township of Washington, County of Warren and the Warren County Policemen's Benevolent Association Local 280 for the period of January 1, 2021 through December 31, 2025.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-192**

**RESOLUTION AUTHORIZING THE TOWNSHIP OF WASHINGTON, THROUGH THE WASHINGTON TOWNSHIP
POLICE DEPARTMENT, TO PARTICIPATE IN THE DEFENSE LOGISTICS AGENCY LAW ENFORCEMENT SUPPORT
OFFICE 1033 PROGRAM TO ENABLE THE WASHINGTON TOWNSHIP POLICE DEPARTMENT TO REQUEST AND
ACQUIRE EXCESS DEPARTMENT OF DEFENSE EQUIPMENT**

WHEREAS, the United States Congress authorized the Defense Logistics Agency (DLA) Law Enforcement Support Office (LESO) 1033 Program the Program to make use of excess Department of Defense personal property by making that personal property available to municipal, county and State law enforcement agencies; and

WHEREAS, DLA rules mandate that all equipment acquired through the 1033 Program remain under the control of the requesting law enforcement agency; and

WHEREAS, participation in the 1033 Program allows municipal and county law enforcement agencies to obtain property they might not otherwise be able to afford in order to enhance community preparedness, response, and resiliency; and

WHEREAS, although property is provided through the 1033 Program at no cost to municipal and county law enforcement agencies, these entities are responsible for the costs associated with delivery, maintenance, fueling, and upkeep of the property, and for specialized training on the operation of any acquired property; and

WHEREAS, N.J.S.A. 40A:5-30.2 requires that the Governing Body of the municipality or county approve, by a majority of the full membership, both enrollment in, and the acquisition of any property through, the 1033 Program.

NOW THEREFORE BE IT RESOLVED by the Township Committee of the Township of Washington, Warren County that the Washington Township Police Department is hereby authorized to enroll in the 1033 Program for a one-year period from January 1, 2021 to December 31, 2021; and

BE IT FURTHER RESOLVED that Washington Township Police Department is hereby authorized to acquire items of non-controlled property designated "DEMIL A," which may include office supplies, office furniture, computers, electronic equipment, generators, field packs, clothing, storage devices and containers, tools, medical and first aid equipment and supplies, personal protection equipment and supplies, lighting supplies, wet and cold weather equipment and supplies, respirators, binoculars, and any other supplies or equipment of a non-military nature identified by the LEA, if it shall become available in the period of time for which this resolution authorizes, based on the needs of the Washington Township Police Department, without restriction, and items of controlled property designated; and

BE IT FURTHER RESOLVED that the Washington Township Police Department is hereby authorized to acquire the following "DEMIL B through Q" property, if it shall become available in the period of time for which this resolution authorizes: 20 cases of 5.56mm rifle ammunition, 20 cases of 9mm handgun ammunition, based on the needs of the Washington Township Police Department, without restriction; and

BE IT FURTHER RESOLVED that the Washington Township Chief of Police shall develop and implement a full training plan and policy for the maintenance and use of the acquired property; and

BE IT FURTHER RESOLVED that the Washington Township Police Department shall provide a quarterly accounting of all property obtained through the 1033 Program which shall be available to the public upon request; and

BE IT FURTHER RESOLVED that this Resolution shall take effect January 1, 2021 and shall be valid to authorize requests to acquire "DEMIL A" property that may be made available through the 1033 Program until December 31, 2021.

BE IT FURTHER RESOLVED that this Resolution shall take effect January 1, 2021 and shall be valid to authorize requests to acquire "DEMIL A" property and "DEMIL B through Q" property that may be made

available through the 1033 Program during the period of time for which this resolution authorizes; with program participation and all property request authorization terminating on December 31st, 2021.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-193
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 15, LOT 8.08**

WHEREAS, the owners of the above property located at 12 Tow Line Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 465,700 to 433,000 which has created an overpayment of \$1212.84 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$1212.84 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Robert and Maria Robertson in the amount of \$1212.84. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-194
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 34, LOT 7**

WHEREAS, the owner of the above property located at 13 Valley View Road made application for a \$250 veteran's deduction which was approved by the tax assessor on December 1st. Since the 2020 taxes have already been paid in full the \$250 deduction has created an overpayment of \$250 on this property. The tax collector is requesting approval to refund this amount.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$250 overpayment is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Charles Smith in the amount of \$250.00. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-195
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 40, LOT 108**

WHEREAS, the owners of the above property located at 30 Oak Ridge Road appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 405,100 to 402,000 which has created an overpayment of \$114.98 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$114.98 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Pinal & Roshni Patel in the amount of \$114.98. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-196
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 45, LOT 29**

WHEREAS, the owners of the above property located at 11 Woolston Way appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 428,400 to 418,400 which has created an overpayment of \$370.90 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$370.90 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Thomas Zins & Barbara Supple in the amount of \$370.90. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-197
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 48, LOT 76.33**

WHEREAS, the owners of the above property located at 7 Maplewood Lane appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 370,600 to 353,800 which has created an overpayment of \$623.11 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$623.11 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Paula Polito in the amount of \$623.11. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-198
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 3 C0322**

WHEREAS, the owners of the above property located at 8 Osprey Court appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 362,600 to 350,500 which has created an overpayment of \$448.79 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$448.79 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Robert & Karola Elliott in the amount of \$448.79. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-199
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 23**

WHEREAS, the owners of the above property located at 11 Falcon Way appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually, these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 380,200 to 365,700 which has created an overpayment of \$537.80 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$537.80 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Joanne Johnstone in the amount of \$537.80. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-200
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 40**

WHEREAS, the owners of the above property located at 50 Merlin Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 441,300 to 420,000 which has created an overpayment of \$790.02 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$790.02 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check

payable to Donna Schlenner in the amount of \$790.02. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-201
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 43**

WHEREAS the owners of the above property located at 44 Merlin Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually, these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS the assessed value of this property was reduced from 403,400 to 391,300 which has created an overpayment of \$448.79 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$448.79 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Susan Garavaglia in the amount of \$448.79. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-202
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 44**

WHEREAS, the owners of the above property located at 42 Merlin Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 436,000 to 430,100 which has created an overpayment of \$218.83 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$218.83 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Rose Marie & Alex Plinio in the amount of \$218.83. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-203
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 46**

WHEREAS, the owners of the above property located at 38 Merlin Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 446,400 to 430,100 which has created an overpayment of \$604.57 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$604.57 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Robert & Mary Maragni in the amount of \$604.57. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-204
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65, LOT 58**

WHEREAS, the owners of the above property located at 14 Merlin Drive appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the

November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 349,900 to 341,600 which has created an overpayment of \$307.85 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$307.85 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Lewis and Barbara Zapko in the amount of \$307.85. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-205
RESOLUTION TO REFUND 2020 OVERPAYMENT
BLOCK 65.05, LOT 4**

WHEREAS, the owners of the above property located at 39 Falcon Way appealed the property's 2020 tax assessment to the Warren County Board of Taxation. Usually these appeals are heard and decided before the tax bills are issued in July so any reductions in taxes due for the year are applied to the August and November amounts due. This year due to Covid-19 the hearings were not held until October 29 with the judgment of the board's decision mailed in early November therefore it was not possible to make any adjustments to the November amount due November 1st. Any overpayment due to the appeal must be refunded within 60 days of the judgment while allowing the owners 45 days to decide if they wish to appeal to the State Tax Court; and

WHEREAS, the assessed value of this property was reduced from 326,800 to 320,100 which has created an overpayment of \$248.50 which the tax collector is requesting be refunded to the owners of the property.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$248.50 overpayment due to appeal is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Gary and Mary Landau in the amount of \$248.50. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-206
RESOLUTION TO REFUND 2018 OVERPAYMENT
BLOCK 65, LOT 63**

WHEREAS, the above property located at 7 Peregrine Drive became tax exempt in 2018 and adjustments were made to cancel taxes that were no longer due. Due to payments made prior to the exemption there is an

overpayment of \$450.08 which needs to be addressed. Since there are no future taxes on the property the overpayment should be refunded.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$450.08 overpayment is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Anthony Reed in the amount of \$450.08. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-207
RESOLUTION TO CANCEL 2020 DELINQUENT
AMOUNTS LESS THAN \$10.00**

WHEREAS, at year end properties for various reasons have small balances of 2020 taxes due in amounts less than \$10.00. The time and expense that would be involved for both the township and owners to get these small amounts paid far exceeds the individual amounts involved. The tax collector is requesting approval to cancel these small balances.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that the tax collector's request to cancel the 2020 balances owed less than \$10.00 is approved. The number of properties involved as of December 5th is 148 with the amount to be canceled \$433.49.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-208
RESOLUTION TO CANCEL 2020 OVERPAYMENTS
LESS THAN \$10.00**

WHEREAS, when overpayments of 2020 taxes occur in amounts of less than \$10.00 these overpayments must be eliminated by applying them to future taxes, refunding them or cancelling them. The time and expense to refund or apply each of these small amounts far exceeds the amounts themselves. The tax collector is requesting approval to cancel these small overpayments. The report dated December 5th shows the number of properties involved at that time is 32 with total overpayments of \$73.86.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to cancel 2020 overpayments of less than \$10.00 is hereby approved.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-209
REDEMPTION RESOLUTION
TOWNSHIP CHAPTER 50 BRUSH, WEEDS & GRASS LIENS
BLOCK 31, LOT 7**

WHEREAS, lien #2019-117 was placed on this property located at 5 Jackson Parkway on June 18, 2019 for costs associated with grass cutting and removal of weeds in the amount of \$530.00. The lien was approved by the township committee and placed on the property by their order.

WHEREAS, the tax collector has been paid \$592.66 which is the amount necessary to redeem the lien.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the Township Committee acknowledges the redemption of this lien.

BE IT FURTHER RESOLVED that the Tax Collector is authorized to cancel this lien on Block 31, Lot 7 from the tax office records.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-210
REDEMPTION RESOLUTION
BLOCK 38, LOT 22 C053**

WHEREAS the Tax Collector was paid \$379.85 which is the amount necessary for the redemption of Tax Sale Certificate #2019-015 sold to Arthur Frustaci. The redemption is being done by the mortgage holder of 53 Congressional Blvd.

NOW, THEREFORE, BE IT RESOLVED on this 15 day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that since Arthur Frustaci identification number is already on file it will be unnecessary to make provision for back up withholding, therefore the CFO is hereby authorized and directed to prepare a check made payable to Arthur Frustaci in the amount of \$479.85 (Redemption amount of \$379.85 + \$100.00 Premium held in trust by township since sale). The check is to be returned to the tax collector who will mail it once the tax sale certificate endorsed for cancellation has been received by him.

BE IT FURTHER RESOLVED that the Tax Collector is authorized to cancel this lien on Block 38, Lot 22 C053 from the tax office records.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-211
REDEMPTION RESOLUTION
BLOCK 38, LOT 22 C0114**

WHEREAS. the Tax Collector was paid \$2365.69 which is the amount necessary for the redemption of Tax Sale Certificate #2019-021 sold to US Bank Cust/Pro Cap 8/Pro Cap. The redemption is being done by the property owner of 114 Pinehurst Drive

NOW, THEREFORE, BE IT RESOLVED on this 15 day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that since US Bank Cust/ Pro Cap 8/Pro Cap identification number is already on file it will be unnecessary to make provision for back up withholding, therefore the CFO is hereby authorized and directed to prepare a check made payable to US Bank Cust/Pro Cap 8/Pro Cap in the amount of \$2565.69 (Redemption amount of \$2365.69 + \$200.00 Premium held in trust by township since sale). The check is to be returned to the tax collector who will mail it once the tax sale certificate endorsed for cancellation has been received by him.

BE IT FURTHER RESOLVED that the Tax Collector is authorized to cancel this lien on Block 38, Lot 22 C0114 from the tax office records.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-212
REDEMPTION RESOLUTION
BLOCK 6, LOT 15**

WHEREAS, the Tax Collector was paid \$1981.80 along with a \$14,000 premium at the tax sale on December 10th to purchase a tax sale certificate on the above property located at 65 Bowerstown Rd. The owner came in an hour after the sale concluded and redeemed the tax sale certificate. The monies paid by the lien buyer must be refunded.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that since US Bank Cust/Pro Cap 8/ Pro Capital MGT II's identification number is already on file it will be unnecessary to make provision for back up withholding, therefore the CFO is hereby authorized and directed to prepare a check made payable to US Bank Cust/Pro Cap 8/ Pro Capital MGT II in the amount of \$15981.80 (Redemption amount of \$1981.80 + \$14000.00 Premium held in trust by township since sale). The check is to be returned to the tax collector who will mail it.

BE IT FURTHER RESOLVED that the Tax Collector is authorized to cancel this lien on Block 6, Lot 15 from the tax office records.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-213
RESOLUTION TO REFUND TAX SALE OVERPAYMENT**

WHEREAS, Lightstone Real Estate Partners LLC purchased several tax liens at the tax sale held on December 10th which were paid by a cashier's check in the amount of \$50,000. Due to lack of a nearby bank

where they have their account and COVID-19 restrictions they did not have the opportunity to use smaller checks. The tax collector accepted the check to allow their purchases of \$45,693.28 in liens and premiums to take place. The amount of \$4,306.72 which is an overpayment needs to be refunded to them.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren the tax collector's request to refund this \$4,306.72 overpayment is hereby approved. The CFO is hereby directed and authorized to prepare a check payable to Lightstone Real Estate Partners LLC in the amount of \$4,306.72. The check once prepared will be given to the tax collector to update the records and for mailing.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-214
RESOLUTION TO TRANSFER TAX SALE PAYMENTS TO THE
OXFORD TOWNSHIP SEWER UTILITY COLLECTOR**

WHEREAS, the Washington Township Tax Collector is responsible for the enforcement of 2019 delinquent sewer charges for Washington Township properties which are connected to the Oxford sewer system. This is done by including them in Washington Township's annual tax sale. The tax sale was held on December 10 and included the properties listed below. They are located at 9 Pebble Beach Way, 10 Pebble Beach Way, 66 Congressional Blvd, 46 Glen Eagles Road, 30 Glen Eagles Road, 7 Inverary Ave and 13 Merion Lane. Tax sale certificates were sold to outside buyers in exchange for the payment of delinquent sewer charges, interest, and costs. It is now necessary to send the sewer charges and interest to the Oxford Township Sewer Utility Collector in order that the funds may be applied to those accounts. Interest was calculated to the date of the sale as required by state tax sale regulations. Additional interest has been provided to cover the period from the tax sale to the receipt of the monies by Oxford Township; and

WHEREAS, the properties involved and the amounts to 12/18/20 are as follows:

Block 28, Lot 3.08	sold for \$721.54 with additional interest (\$.16)	= \$721.70
Block 28, Lot 3.20	sold for \$377.50 with additional interest (\$.67)	= \$378.17
Block 38, Lot 22 C0066	sold for \$ 54.27 with additional interest (\$.10)	= \$ 54.37
Block 38.01, Lot 2	sold for \$180.35 with additional interest (\$.32)	= \$180.67
Block 38.02, Lot 1	sold for \$888.22 with additional interest (\$.20)	= \$888.42
Block 38,.03, Lot 29	sold for \$307.07 with additional interest (\$.55)	= \$307.62
Block 38.04 Lot 27	sold for \$171.69 with additional interest (\$.31)	= \$172.00

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that the tax collector's request to forward the funds received as result of the December 10 tax sale to the Oxford Township Sewer Utility Collector is approved. The CFO is hereby authorized and directed to prepare a check made payable to Oxford Township Sewer Utility in the amount of \$2702.95.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-215
RESOLUTION TO TRANSFER TAX SALE PAYMENT TO THE
BOROUGH OF WASHINGTON SEWER UTILITY COLLECTOR**

WHEREAS, the Washington Township Tax Collector is responsible for the enforcement of the collection of delinquent 2019 sewer charges for Washington Township properties which are connected to the Borough of Washington's sewer system by including them in Washington Township's annual tax sale. The tax sale was held on December 10 and included the property listed below. A tax sale certificate was sold to an outside buyer in exchange for the payment of delinquent sewer charges, interest and costs. It is now necessary to send the sewer charges and interest to the Borough of Washington Municipal Sewer Utility Collector in order that the funds may be applied to that account. Interest was calculated to the date of the sale as required by state tax sale regulations. Additional interest has been provided to cover the period from the tax sale to the receipt of the monies by Borough of Washington Municipal Sewer Utility; and

WHEREAS, the property involved and the amounts to 12/18/20 is as follows: Block 27, Lot 13.02 (48 Kinnaman Ave) sold for \$634.37 with interest of \$1.13 for a total of \$635.50.

NOW, THEREFORE, BE IT RESOLVED on this 15th day of December by the Mayor and Township Committee of the Township of Washington, County of Warren that the tax collector's request to forward the funds received as result of the December 10 tax sale to the Washington Borough Sewer Utility Collector is approved. The CMFO is hereby authorized and directed to prepare a check made payable to BOWMSU in the amount of \$635.50.

**TOWNSHIP OF WASHINGTON
WARREN COUNTY, NEW JERSEY
RESOLUTION #2020-216**

**RESOLUTION DEMANDING THAT THE NEW JERSEY STATE LEGISLATURE ACCEPT ITS RESPONSIBILITY TO
ADMINISTER THE PROVISIONS OF THE AFFORDABLE HOUSING ACT AND STAY FURTHER ACTION UNTIL SUCH
TIMES AS IT HAS PROMULGATED RULES GOVERNING ITS IMPLEMENTATION**

WHEREAS, in 1975 the New Jersey Supreme Court in Mount Laurel I decreed that every municipality in New Jersey, "must, by its land use regulations, presumptively make realistically possible an appropriate variety and choice of housing. More specifically, presumptively it cannot foreclose the opportunity of the classes of people mentioned for low and moderate income housing and in its regulations must affirmatively afford that opportunity, at least to the extent of the municipality's fair share of the present and prospective regional need therefor" (*10 S. Burlington Cty. N.A.A.C.P. v. Mount Laurel Twp.*, 67 N.J. 151, 174 (1975)) ; and

WHEREAS, in 1983, the Supreme Court in Mount Laurel II expanded the Mount Laurel doctrine, saying:

"Therefore, proof of a municipality's bona fide attempt to provide a realistic opportunity to construct its fair share of lower income housing shall no longer suffice. Satisfaction of the Mount Laurel obligation shall be determined solely on an objective basis: if the municipality has in fact provided a realistic opportunity for the construction of its fair share of low and moderate income

housing, it has met the Mount Laurel obligation to satisfy the constitutional requirement; if it has not, then it has failed to satisfy it. Further, whether the opportunity is “realistic” will depend on whether there is in fact a likelihood-to the extent economic conditions allow-that the lower income housing will actually be constructed. Plaintiff's case will ordinarily include proof of the municipality's fair share of the regional need and defendant's proof of its satisfaction. Good or bad faith, at least on this issue, will be irrelevant.” (*S. Burlington Cty. N.A.A.C.P. v. Mount Laurel Twp.*, 92 N.J. 158, 220–22 (1983)); and

WHEREAS, the Supreme Court in Mount Laurel II suggested that builders’ remedies should be used to force compliance by municipalities, reasoning that:

Experience . . . has demonstrated to us that builder's remedies must be made more readily available to achieve compliance with Mount Laurel. We hold that where a developer succeeds in Mount Laurel litigation and proposes a project providing a substantial amount of lower income housing, a builder's remedy should be granted unless the municipality establishes that because of environmental or other substantial planning concerns, the plaintiff's proposed project is clearly contrary to sound land use planning. We emphasize that the builder's remedy should not be denied solely because the municipality prefers some other location for lower income housing, even if it is in fact a better site. (*S. Burlington Cty. N.A.A.C.P. v. Mount Laurel Twp.*, 92 N.J. 158, 279–80 (1983)); and

WHEREAS, the New Jersey Legislature responded quickly to the Court’s Mount Laurel decision by enacting the Fair Housing Act of 1985, N.J.S.A. 52:27D-301, et seq., which created the Council on Affordable Housing (“COAH”) which as the Court noted in Mount Laurel IV “. . . was designed to provide an optional administrative alternative to litigating constitutional compliance through civil exclusionary zoning actions.” (*In re Adoption of N.J.A.C. 5:96 & 5:97 ex rel. New Jersey Council on Affordable Hous.*, 221 N.J. 1, 4 (2015); and

WHEREAS, COAH, pursuant to the authority granted to it by the Fair Housing Act, then adopted procedural and substantive rules which provided clear guidance to municipalities as to how they could meet their affordable housing obligation; and

WHEREAS, in its rules, COAH assigned a fair share number to each municipality and set forth various mechanisms that a municipality could use in order to satisfy that obligation; and

WHEREAS, the Township of Washington, County of Warren, like many other municipalities throughout the State of New Jersey, met its First and Second Round Affordable Housing Obligations through the COAH process; and

WHEREAS, COAH adopted the First Round Rules for the period from 1987 through 1993 and the Second Round Rules for the period 1993 to 1999 and then extended to 2004; and

WHEREAS, COAH was obliged by the Fair Housing Act to adopt Third Round Rules to take effect in 2004, however, but never adopted rules that were acceptable to the Courts; and

WHEREAS, in 2015, the Supreme Court again stepped in, finding that COAH's failure to adopt Third Round Rules forced the Court to intervene; and

WHEREAS, the Supreme Court designated Mount Laurel judges in each of the fifteen court vicinages to hear all Mount Laurel cases; and

WHEREAS, instead of providing clear guidance, like the COAH rules did, the Supreme Court in Mount Laurel IV set forth vague standards that have led to a complex system of non-uniform implementation; and

WHEREAS, as a result of the Supreme Court's decision in Mount Laurel IV, municipalities no longer were assigned fair share numbers, no longer had clear and concise procedural and substantive rules to follow, and no longer had one tribunal to decide these issues, which meant that even the threshold issues of regional need and local fair share obligations had to be litigated before fifteen different Mount Laurel judges, and as a result, municipalities were forced to spend tens of thousands, and in some cases hundreds of thousands of dollars, to negotiate fair share numbers with the Fair Share Housing Center ("FSHC") and to gain court approval of settlement agreements negotiated with FSHC; and

WHEREAS, the Supreme Court in Mount Laurel IV concluded its opinion by encouraging the Legislature to once again assume responsibility in the area of affordable housing, saying:

"In conclusion, we note again that the action taken herein does not prevent either COAH or the Legislature from taking steps to restore a viable administrative remedy that towns can use in satisfaction of their constitutional obligation. In enacting the FHA, the Legislature clearly signaled, and we recognized, that an administrative remedy that culminates in voluntary municipal compliance with constitutional affordable housing obligations is preferred to litigation that results in compelled rezoning. (Citation omitted.) It is our hope that an administrative remedy will again become an option for those proactive municipalities that wish to use such means to obtain a determination of their housing obligations and the manner in which those obligations can be satisfied" (*In re Adoption of N.J.A.C. 5:96 & 5:97 ex rel. New Jersey Council on Affordable Hous.*, 221 N.J. 1, 34 (2015)); and

WHEREAS, it has been five years since the Mount Laurel IV opinion was issued and, to the detriment of each municipality in New Jersey and to the future viability of the State, neither the Legislature nor the Governor nor COAH have taken any action to remedy the situation; and

WHEREAS, if the Governor, the Legislature and COAH continue to ignore their responsibilities, municipalities will once again face a burdensome, time-consuming, and expensive process to obtain Fourth Round Mount Laurel compliance starting in 2025.

NOW, THEREFORE, BE IT RESOLVED by the Township Committee of the Township of Washington in the County of Warren, State of New Jersey, that it does hereby demand that the Governor and the Legislature cease their unconscionable disregard of this most important provision of the State constitution and take immediate and decisive action to restore a viable administrative remedy that municipalities can use in satisfaction of their constitutional obligations to provide affordable housing.

STAFF REPORTS

Chief Cicerelle had previously submitted his monthly report. The Committee had no questions for him.

In addition to his monthly report, Mr. Hart commented on the expected snowstorm.

Mr. Rossi thanked Committeeman Kovacs for his years of service.

Mr. deBoer discussed his report with the Committee.

PUBLIC QUESTIONS AND CONCERNS

Mayor Klingel opened the meeting to public. Seeing no one to address the Committee, Mayor Klingel closed the public portion of the meeting.

OLD BUSINESS

Mr. Fiore updated the Committee regarding the foreclosed properties and future auction. Mr. Kovacs offered details concerning a particular property.

Mr. Fiore spoke about recently received correspondence from Stefanie Miller of the State Agriculture Development Committee regarding Farmland Preservation. Attorney Campbell contributed to the discussion.

A forestry harvesting report was given by Mr. Fiore. He stated that Roaring Rock is the next project in line.

NEW BUSINESS

The Committee discussed a request for Highlands Applicability Determination for 180 E. Asbury Anderson Road.

A motion was made by Fiore, seconded by Rossi, to accept 2021 RFP recommendations.

ROLL CALL: Fiore, yes; Rossi, yes; Kovacs, yes; Willan, yes; Klingel, yes

A motion was made by Willan, seconded by Fiore, to approve the 2021 Washington Township Holiday schedule.

ROLL CALL: Willan, yes; Fiore, yes; Kovacs, yes; Rossi, yes; Klingel, yes

A motion was made by Fiore, seconded by Kovacs, to authorize the Township Administrator to sign the Hydrant Authorization Form for Hawk Pointe Area 9.

ROLL CALL: Fiore, yes; Kovacs, yes; Rossi, abstain; Willan, abstain; Klingel, yes

ECONOMIC DEVELOPMENT

Nothing was discussed at this meeting.

A motion was made by Rossi, seconded by Willan, to amend the UCC shared services agreement as directed by the Division of Community Affairs.

ROLL CALL: Rossi, yes; Willan, yes; Fiore, yes; Kovacs, yes; Klingel, yes

REPORTS FROM OFFICIALS

Mayor Klingel issued a proclamation in recognition of Committeeman Kovacs' thirty-one years of service to the Committee of the Township of Washington.

PROCLAMATION OF APPRECIATION TO MICHAEL A. KOVACS

WHEREAS Michael A. “Mike” Kovacs is being awarded this recognition as we deeply appreciate the important contributions that certain individuals have made, not only in the private sector, but especially in the service to our country and during a long and distinguished career in service to the public as an elected official serving on the Washington Township Committee; and

WHEREAS, Mike, a Veteran of the U.S. Navy, served on the USS Gudgeon. He worked for Penn Pump, retiring after 32 years. Mike volunteered as Head Varsity Wrestling Coach for Phillipsburg Catholic High School for 8 years, Washington Elementary Girls Softball Coach for 10 years, Head Coach of the Warren Hills Girls Varsity Softball Team for 7 years and also coached girls’ soccer at St. Elizabeth College doing so with the love and encouragement of his wife Barbara and family. After all, he became a model for what a good, loving caregiver is; and

WHEREAS, Mike began serving the residents of the Township of Washington as a member of the Township Committee in 1990 and will retire his seat on December 31, 2020. During his time on the Township Committee, Mike served as Mayor for many of those years and during his years of dedicated service as Mayor and Committeeman, he served on various committees as a member and chairperson always keeping the welfare of the residents of Washington Township first and foremost in his decision making; and

WHEREAS, during Mike’s tenure in office as Mayor and Committeeman, substantial public improvements were made including the purchase of land and expansion of Meadow Breeze Park, the purchase of the New Jersey American Water Company property now known as Roaring Rock Park, the purchase and renovation of a new Administration and Police Building, the Police Shared Services Agreements with the Borough of Washington and the Township of Oxford, the purchase of the property on Millpond Road and Route 57 which includes the historic Autogiro Port buildings of Earle Eckel, construction of a new Public Works Facility building and the purchase of properties throughout the township for Farmland Preservation. In addition, there are many other improvements to parks and public lands within the Township of Washington not mentioned; and

WHEREAS, Mike dedicated himself to not only serve the residents of the Township of Washington but kept the cares and concerns of the employees of Washington Township close to his heart. This admirable aspect of his service while serving on the Township Committee has earned him the distinction of many to call him “Uncle Mike” and over the course of three decades, Mike has been a major cornerstone in the community and has contributed to the earned reputation of the Township of Washington as being a highly respected municipality in the County of Warren as well as in the State of New Jersey, and

WHEREAS, Mike has proven to be a treasured member of our community for decades donating his time and talents for the benefit of the Township. Mike was inducted into the 2012 New Jersey League of Municipalities Mayors Hall of Fame on Wednesday, December 5, 2012; and

WHEREAS, it is the desire of myself, current Committeemen Mark Rossi, George Willan, and Ralph Fiore and past Committee members to recognize fellow Committeeman, Michael A. Kovac’s service to the Township of Washington and the surrounding communities.

NOW, THEREFORE, I, ROBERT KLINGEL, Mayor of the Township of Washington, do hereby recognize and extend warmest congratulations to Michael A. Kovacs, for his exceptional 30 year tenure as Mayor and Township Committeeman with the Township of Washington and do wish Mike and his family the very best for the future.

Mr. Fiore advised the Committee of matters which were discussed at the recent Fire District meeting that he attended. He also reported details from the Recreation Committee meeting.

Deputy Mayor Rossi read a letter of appreciation to Committeeman Kovacs received from Senator Cory A. Booker.

Chief Cicerelle presented Committeeman Kovacs with a plaque declaring his honorary membership in the Washington Township Police Department.

Committeeman Willan read a Joint Legislative Resolution by Senator Doherty and Assemblymen DiMaio and Peterson signed by Senator Sweeney and Speaker Coughlin recognizing Mr. Kovacs' service.

Sheriff James McDonald shared some memories of his time spent working with Committeeman Kovacs and offered his congratulations on Mike's retirement.

Mr. Willan announced that the CPI is 1.1 per cent. The Committee discussed its effect on 2021 salaries. He also updated the group on a meeting he attended with the Washington Emergency Squad.

PAYMENT OF BILLS

A motion was made by Willan, seconded by Rossi, to approve the payment of the bills in the amount of \$2,647,108.98. **ROLL CALL:** Willan, yes; Rossi, yes; Fiore yes; Kovacs, yes; Klingel, yes

Committeeman Kovacs left the meeting prior to Executive Session.

EXECUTIVE SESSION

A motion was made by Fiore, seconded by Rossi, to approve Resolution 2020-217, Resolution Authorizing Executive Session for a Meeting Not Open to the Public in Accordance with the Provisions of the NJ Open Public Meeting Act, N.J.S.A. 10:4-12 at 8:40 pm. Attorney Campbell stated that the Committee would be discussing (2) personnel matters; (1) attorney-client privilege matters dealing with a letter regarding 120 Rymon Road; (3) contractual matters dealing with the Comcast franchise renewal, EZnergy solar panel proposal, and the Teamsters contract. **ROLL CALL:** Fiore, yes; Rossi, yes; Kovacs, yes; Willan, yes; Klingel, yes

RESOLUTION #2020-217

RESOLUTION AUTHORIZING EXECUTIVE SESSION OF THE TOWNSHIP COMMITTEE OF THE TOWNSHIP OF WASHINGTON FOR A MEETING NOT OPEN TO THE PUBLIC IN ACCORDANCE WITH THE PROVISIONS OF THE NEW JERSEY OPEN PUBLIC MEETINGS ACT, N.J.S.A. 10:4-12

WHEREAS, the Governing Body of the Township of Washington, County of Warren, will be going in Executive Session; and

WHEREAS, the meeting is not open to the public in accordance with the provisions of the New Jersey Open Public Meetings Act, N.J.S.A. 10:4-12.

NOW THEREFORE, BE IT RESOLVED that the Township Committee of the Township of Washington will give a brief summary of the meeting upon coming out of Executive Session.

A motion was made by Willan, seconded by Fiore, to come out of Executive Session at 9:23 pm.

All were in favor. Attorney Campbell stated the Committee discussed (2) personnel matters; (1) attorney-client privilege matters dealing with a letter regarding 120 Rymon Road; (3) contractual matters dealing with the Comcast franchise renewal, EZenergy solar panel proposal, and the Teamsters contract. No official action was taken. Copies of these minutes will be available at such time the Committee determines there is no harm to the public interest.

A motion was made by Willan, seconded by Fiore to authorize Mr. deBoer to act upon two personnel matters as discussed in Executive Session.

ADJOURNMENT

Hearing no further business to come before the Committee, a motion was made by Rossi, seconded by Fiore, to adjourn the meeting at 9:25 pm.

All were in favor.

Respectfully submitted,

Ann Kilduff, RMC
Township Clerk